



RFP # 2026-001-AR
City of Walnut Creek
Arts + Recreation Department

Request for Proposals for Recreation Management Software System

*For use by Arts + Recreation programs in the areas of Facility Rentals and Management,
Registration, Membership, Point-of-Sale, and more.*

DATE ISSUED: March 23, 2026
DATE DUE: April 17, 2026, by 5:00 p.m. PDT
CONTACT: Elizabeth Sheets Orcutt, Community Relations Manager
orcutt@walnutcreekca.gov

Proposals are due to the City of Walnut Creek's Arts + Recreation department no later than 5:00 p.m. PDT on April 17, 2026. Please provide a digital copy to orcutt@walnutcreekca.gov and five (5) print copies to 1666 N. Main St, Walnut Creek, CA, 94596 by the submission deadline.

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1. RFP OVERVIEW

A. Organization Background

The City of Walnut Creek's Arts + Recreation Department encompasses the Leshner Center for the Arts, Center Repertory Company, Bedford Gallery, Public Art, Center for Community Arts, Recreation Programs, Aquatics, Social Services, and Boundary Oak Golf Course. Together, these essential programs contribute to making Walnut Creek a regional destination for participants and audience members. Arts + Rec programs promote arts appreciation and personal enrichment, community engagement and volunteerism, and fitness and wellness while contributing to the City's economic vitality. The Department's mission, vision, and values are included at the end of this RFP.

The Arts + Rec programs relevant to this RFP are summarized here:

Center for Community Arts

For over 50 years, the City of Walnut Creek's Center for Community Arts program has been the regional center of arts learning. The division brings high-quality visual and performing arts instruction and educational experiences to participants of all ages.

Aquatics

The Aquatics Program operates and maintains Clarke and Larkey Aquatics Centers, which host hundreds of thousands of visitors annually for recreational swimming, lap swimming, swim lessons, water exercise, and lifeguard training.

Recreation & Social Services

Recreation Services provides recreation programs and classes for pre-school ages to active adults, including personal enrichment, dance and movement, science and nature, sports, and food and cooking. The division also enriches the lives of seniors and physically and developmentally disabled youth and adults by providing relevant and stimulating programs and services.

B. Purpose of the RFP

The City of Walnut Creek (City) is soliciting proposals from qualified vendors or service providers (each a "respondent", "vendor", or "proposer") for a Recreation Management System with mobile-optimized online registration to support the programs managed by Arts + Rec. These services and programs include but are not limited to: program and class reservations, facility reservations (e.g. fields, gyms, community centers, picnic areas), memberships, league scheduling, aquatics management, point of sale, picnic reservations, senior programs, payment processing, customized reporting and any related professional services required to implement/train new users on the software.

The City currently uses Xplor Recreation (formerly PerfectMind, Inc.) for these business needs, including class registration, facility bookings, and point-of-sale transactions. See [SECTION 2. EXISTING ENVIRONMENT](#) for further details on the current system and level of use.

The City's objective is to establish a long-term relationship with a vendor capable of keeping current with recreation management industry trends and best practices. The vendor should be capable of supporting the City's current and future needs, committed to a highly responsive customer service approach, and committed to the constant evolution of the proposed Recreation Management System. The new system should strengthen the relationship between the City, our patrons, and partner organizations.

The selected vendor must be capable of providing all services, including training and user support, technical support and security, and backup and business continuity protocols. The City desires a single vendor for all services identified in the RFP. However, the City will consider alternatives such as a prime vendor subcontracting with a third-party service provider for a specific function.

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C. [Scope of Services](#)

The scope of services should include all software, hardware, and services required to support the implementation, data extraction, and migration, and ongoing system functions (together hereinafter "services").

As a minimum, the vendor's services are required to include the following:

- In person, phone, and online Activity Registration, with associated transaction accounting;
- Cashiering and Point of Sale, with associated transaction accounting;
- An associated payment processing system for credit card processing;
- Facility Management and Reservations, with associated transaction accounting;
- Membership Management and Pass Validation, with associated transaction accounting;
- Individual, Family, and Organizational Account Management;
- System Security, Redundancy, and Ongoing Maintenance and Support;
- Accounting and Finance coordination with City policies, including integration with Munis Software from Tyler Technologies;
- Marketing Functions; and
- Any web content, including but not limited to website content, design, mobile applications, and PDFs provided to the City, complies with ADA Title II, Web Content Accessibility Guidelines 2.1 Levels A and AA ("WCAG 2.1 AA"), as well as all applicable federal and state accessibility laws.

Refer to Attachment A: [Functional and Technical Requirements](#) (Section 9) for additional details and explanation of needs.

2. EXISTING ENVIRONMENT

A. [Current Business Technology](#)

The current Recreation Management System used by the City is Xplor Recreation. Across six different physical locations, associated hardware includes:

- Credit Card Transaction Pin Pads: Verifone MX915 hosted by VantivTerminal via WorldPay
- Membership card scanner: Honeywell 7580G
- Receipt printers: EPSON Step-5e
- Membership card printer: Zebra ZC300

B. [Current Network Technology](#)

Continues on next page.

Table 1. Current Technology Standard

Technology	Current Standard
Desktop OS	Windows
Desktop Hardware	Dell desktops
Office Productivity	M365
Browser	Chrome, Firefox, or Edge
Email Server/Client	M365
Authentication	Active Directory

Table 2. Devices by Facility

Facility	Pin Pad	Card Scanner	Till/Receipt Printer	Membership Card Printer
Clarke Swim Center	2	1	2	1
Larkey Swim Center	2	1	2	1
Shadelands Art Center	1	0	1	0
Civic Park Community Center	1	1	2	1
Tice Community Gym	1	1	1	1
Heather Farm Community Center [not until 2027]	2	2	1	0

C. **Current Level of Use**

The tables below summarize the estimated volumes of transactions and records associated with the application processing requirements and preliminary conversion requirements. Volumes reflect FY25 (7/1/2024 – 6/30/2025) unless otherwise indicated.

Table 3. Registration, Facility, and Membership Volumes

Volume Description	Quantity	Estimated Annual Activity Volumes	Total Annual Revenue
Total Active Account Records (all time, as of 2/2/2026)	26,557		
Total Account Records with transactions on or after 7/1/2024 (current and previous FY)	15,168		
Total Organization/Business Records (all time, as of 2/2/2026)	822 (compared to 25,736 Family Accounts)		
Program Registrations Processed FY25		10,249	\$2,611,861
Facility Reservations FY25	10,033	48,307 hours	\$1,738,334
Memberships Sold FY25	5,099		\$254,918
Memberships Active FY25	2,482		
POS transactions FY25			\$6,835,681

Table 4. Transaction Breakdown

Transaction Type	Total for FY25 (7/1/2024-6/30/2025)
Cash	\$76,069
Credit Cards	\$5,626,654
Check	\$1,089,922
Gift Card	\$1,165
Subsidy	\$67,423
TOTAL	\$6,861,233

3. PROPOSAL CONTENT & SUBMISSION REQUIREMENTS

Proposals should be prepared simply, economically, and provide a straightforward, concise description of the vendor's company, qualifications, proposed solutions, and capabilities to satisfy the requirements of this RFP. Emphasis should be on completeness and clarity of content. Proposals are due to the City of Walnut Creek's Arts + Recreation department no later than 5:00 p.m. PDT on April 17, 2026. Please provide a digital copy to orcutt@walnutcreekca.gov and five (5) print copies to 1666 N. Main St, Walnut Creek, CA, 94596 by the submission deadline. Late submittals not actually received by the City by this date and time will not be considered regardless of when they were sent.

The proposals must highlight the Respondent's expertise in the areas listed in the Scope of Services, and must include all of the following:

A. Executive Summary

Briefly introduce the company and provide a concise narrative of the Respondent's qualifications for the job. Include reasons why the Responding team best meets the City's needs.

B. Proposed Solution

In this section, the Vendor should identify the proposed solutions up to and including the following:

- Provide a comprehensive overview of the solution proposed.
- Provide a written response that addresses each requirement in Attachment A: [Functional and Technical Requirements](#) (Section 9) individually. The first sentence of each requirement response should clearly indicate whether the vendor's proposed solution meets, does not meet, or would require customization/third party solution. Vendors are encouraged to provide an adequate description of how the solutions meet the requirements to allow the evaluators to fully understand the features, functions, and capabilities.
- Based on the vendor's experience and expertise, identify any additional proposed features, functions, or capabilities that the City should consider meeting the stated goals.
- Respondents should describe their approach to accessibility compliance, including testing practices and availability of VPAT or equivalent documentation

C. Implementation Approach

In this section the vendor should address the following:

- Provide a project organization chart highlighting the key staff who will be assigned to accomplish the work required by this RFP and illustrating the lines of authority and designate the individual responsible for completion of each service component and deliverable. Provide brief biographies for the project manager and assigned key project personnel.
- Describe your implementation methodology and approach. This includes the tools and techniques that will be used and methodologies that the firm will employ.

- Describe the roles and responsibilities of both the City and Vendor staff during each emphasis of implementation. In addition, provide an estimated level of effort for the City staff during implementation.
- Provide a project schedule that includes all tasks, deliverables, milestones, and resources required. The City seeks a detailed understanding of the work plan that will be followed to ensure success.
- Describe your user acceptance testing methodology and criteria for success. Also, outline the responsibilities of City staff during user acceptance testing.

D. Ongoing Support and Hosting Services

In this section, the Vendor should address the following:

- Describe ongoing support processes, procedures, and methods. At a minimum, the description should identify hours of support, methods to access support, after-hours support, response time commitments, and escalation procedures.
- Describe proposed service level metrics and/or commitments.
- Describe software release/update frequency and procedures to perform updates.
- Describe the associated ongoing service level commitments that ensure a high performing software solution and stable online sales.
- Describe security and back up and disaster recovery processes and procedures.
- Discuss the vendor's philosophy and approach for ongoing research and development to advance the proposed solution and ensure it remains current to evolving technologies and standards.
- Describe the vendor's configuration and change management process. For the purposes of the vendor's response to the RFP, configuration management is the management of every aspect of a configuration from beginning to end (i.e. identification, planning, change control and management, release management, and maintenance). Change management refers to the standardized methods and procedures for handling of all changes to production hardware/software to minimize disruption.

i. Service Level Agreement (SLA) Requirements

The successful vendor must commit to the following minimum service levels:

1. System Availability

Hosted solution must maintain 99.9% uptime per calendar month, excluding scheduled maintenance (with at least 72 hours advance notice).

2. Incident Response and Resolution

Table 5. Incident Response and Resolution Expectations

Incident Level	Description	Response/Notification Time	Resolution Time
Critical	Complete inability to use the system or recurring outages	1 hour	8 hours
High	Significant degradation of major features or inconsistent operation after updates	2 hours	1 business day (Pacific time zone)
Low	Minor degradation or secondary feature issues	1 business day (Pacific time zone)	As prioritized; estimated timeline provided within 5 business days

ii. Escalation

Vendor must provide an escalation path up to senior technical leadership if resolution exceeds SLA timeframes.

iii. **Maintenance and Updates**

Vendor must provide advance notice of scheduled maintenance and ensure compliance with ADA Title II and WCAG 2.1 AA standards.

iv. **Data Security and Backup**

Daily backups, encrypted storage, and disaster recovery objectives:

- RTO (Recovery Time Objective): 24 hours
- RPO (Recovery Point Objective): 4 hours

v. **Reporting and Remedies**

- Monthly SLA compliance reports provided to the City.
- Service credits (or fines commensurate with impacted business) applied for failure to meet SLA targets.

vi. **Functional Performance**

If the system does not perform as warranted as set forth in the SLA due to an issue under the Proposer's control, the Proposer will use all reasonable efforts consistent with industry standards to correct the issue in accordance with the SLA.

E. **Pricing**

Respondents shall provide a clear, well-structured cost proposal outlining all fees associated with delivering the Recreation Management System/Services, including implementation. The City seeks transparency while allowing flexibility in how vendors present pricing. Cost proposals must include a 5-year total cost of ownership and a breakdown of all one-time and recurring costs.

F. **Related Experience**

Describe recent, directly related experience. Include the name of the client, description of the project, services you provided, the name of your project lead if relevant, and dates of the project.

G. **References**

At least three reference clients from the last five (5) years should be included. For each reference, indicate the reference name, organization, title, complete mailing address, and telephone number. The City reserves the right to contact any organizations or individuals listed.

H. **Ability to Meet Contract, Insurance, and Business License Requirements**

In addition to confirming the ability to execute the technical terms of the contract, respondents must be able to meet the City's insurance and indemnification requirements by providing the appropriate certificates and endorsements. A current City of Walnut Creek business license is required before execution of the contract. Vendors should identify in this section any exceptions that the vendor wishes to take from the City's standard service terms and conditions as found in Attachment B: [Consultant Services Agreement with Insurance and Indemnification Requirements](#) (Section 9).

I. **Proposal Submittal**

Proposals are due to the City of Walnut Creek's Arts + Recreation department no later than 5:00 p.m. PDT on April 17, 2026. Please provide a digital copy to orcutt@walnutcreekca.gov and five (5) print copies to 1666 N. Main St, Walnut Creek, CA, 94596 by the submission deadline. Late submittals not actually received by the City by this date and time will not be considered regardless of when they were sent.

Vendors must submit an electronic copy in a single .pdf file to RFP Coordinator, Elizabeth Orcutt at orcutt@walnutcreekca.gov. The subject line of the email should identify "**RFP 2026-001-AR**"

Recreation Management Proposal Submission”. The body of the email should identify the following:

- Proposal for Lesher Center Ticketing Solution
- RFP #2026-001-AR
- Name of Vendor
- Vendor’s Address
- Vendor’s Contact Person
- Vendor’s Telephone Number

Refer to [Section 3: PROPOSAL CONTENT & SUBMISSION REQUIREMENTS](#) for additional details and guidance.

The City must receive all proposals by the date and time shown in Section 1 above. Proposals received after this time and date will not be considered regardless of when they were sent.

Vendors are solely responsible for ensuring the proposal is received by the City contact prior to the deadline. The City will indicate successful receipt of the vendor’s proposal with an email reply to the submission email that acknowledges receipt. An automated system generated receipt (e.g. read receipt or delivery receipt) does not constitute proof of successful submittal. Vendors must receive a specific email from the RFP Coordinator confirming receipt in order for the proposal to be considered received by the City.

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4. PROJECT TIMELINE

Table 6, RFP Schedule of Events, identifies the City’s best estimate of the schedule that will be followed. The schedule is subject to change at the City’s discretion. The City will endeavor to provide advance notice to Respondents of any schedule changes.

Table 6. RFP Schedule of Events

Milestone	Date
Request for Proposals Issued	March 23, 2026
Final Date to Submit Questions about this RFP	April 3, 2026, by 5:00 p.m. PDT
City Issues Written Response to Questions	April 10, 2026
Proposals Due	April 17, 2026, by 5:00 p.m. PDT
Communicate with Finalists and Coordinate Demos	April 24-May 1, 2026
Selection of Finalist	May 11, 2026
City Council Approval of Contract	May 19, 2026
Successful Respondent Begins Work	June 2026

The City reserves the right, at its sole discretion, to adjust this schedule, as it deems necessary.

A. RFP Coordinator

All communications concerning this RFP must be submitted via email to the RFP Coordinator identified below. The RFP Coordinator will be the sole point of contact for this RFP. Please address any requests for additional information or clarification via email to Elizabeth Orcutt, Community Relations Manager, at orcutt@walnutcreekca.gov. All vendors who have notified the City of their intent to respond to the RFP will be provided, via email, with copies of any

questions submitted and the City's answers. The City is not responsible for delayed or lost email, regardless of the cause.

Unauthorized vendor contact with anyone else in the City is expressly forbidden and may result in disqualifications of the vendor's proposal.

5. SELECTION PROCESS

The City will review all proposals received by the deadline, evaluate proposals that are deemed to be responsive, identify a short list of proposers to interview, and conduct interviews, if necessary. The City reserves the right, at its sole discretion, to request clarifications of proposals or to conduct discussions for the purpose of clarification with any or all proposers. The purpose of any such discussions shall be to ensure full understanding of the proposal. The City reserves the right to conduct or not conduct interviews and to request additional information before or after interviews. The City may select a proposer and award a contract with or without interviews.

The City will enter into contract negotiations with the selected proposer whose understanding of the City's goals, qualifications, experience, proposal content and quality, proposed approach and work plan, availability, references, and other factors best meet the City's needs. The City's ultimate acceptance of any proposal and its negotiation and execution of any contract will be based on a determination of the best overall value for the City and not necessarily based on price or any single criteria. If it is not possible to negotiate a satisfactory agreement with the City's first choice, the City may negotiate with another proposer. The selection of a proposer and award of a contract shall be at the sole discretion of the City and subject to approval by the appropriate official/legislative body.

A. Short-list Vendor Interviews and Presentations

Vendors selected for onsite demonstrations with City staff will be provided with a series of transactions to perform in advance. The City will also provide a list of desired reports and information generated by these transactions. These proof-of-capabilities demonstrations are not intended to be a generic demonstration of the application, but rather a demonstration of specific product functionality deemed most critical to the City, using scenarios provided by the City. **Proposers must be prepared to invest the time and resources in the proof-of-capabilities demonstrations to be successful in this procurement.** Additional details will be distributed directly to the vendors selected for on-site presentations.

B. Questions Pertaining to the RFP

Specific questions concerning the RFP must be submitted via email to the RFP Coordinator (See Section 4, A) before the date identified in Section 4, Table 6, RFP Schedule of Events. Vendor questions should clearly identify the relevant section of the RFP and the page number(s) related to the question.

Content of all questions and the City's responses will be emailed to all vendors notifying the City of their intent to submit a proposal.

6. SELECTION CRITERIA

Proposals will be evaluated based on the following criteria, weighted as outlined in Table 7:

- Quality, clarity, and responsiveness of proposal
- Ability to provide a software solution that meets the current and future needs of the City
- Proven ability to plan, implement, and support the software solution
- Anticipated value and price
- References and related past experience
- Proposed timeline

Table 7. Selection Criteria

Criteria	Percentage of Score
Quality, clarity, and responsiveness of proposal	5%
Ability to provide a software solution that meets the current and future needs of the City	30%
Proven ability to plan, implement, and support the software solution	30%
Anticipated value and price	15%
References and related past experience	10%
Proposed timeline	10%

7. GENERAL REQUIREMENTS & INFORMATION

Collusion By submitting a response to the RFP, each Respondent represents and warrants that its response is genuine and is not made in the interest of or on behalf of any person not named therein; that the Respondent has not directly induced or solicited any other person to submit a sham response or any other person to refrain from submitting a response; and that the Respondent has not in any manner colluded to secure any improper advantage over any other person submitting a response.

Gratuities No person will offer, give or agree to give any City employee or its representatives any gratuity, discount, offer of employment, or other financial advantage in connection with the award of contract by the City. No City employee or its representatives will solicit, demand, accept or agree to accept from any other person a gratuity, discount, offer of employment, or other financial advantage in connection with a City contract.

Required Review and Waiver of Objections by Vendor Respondents must carefully review this RFP and all attachments for comments, questions, defects, objections, or any other matter requiring clarification or correction (collectively called “comments”). Protests based on any objection will be considered waived and invalid if these faults have not been brought to the attention of the City as a part of the proposal submission.

Proposal Withdrawal To withdraw a proposal, the Respondent must submit a written request, signed by an authorized representative, to the RFP Contact Person. After withdrawing a previously submitted proposal, the Respondent may submit another proposal at any time up to the deadline for submitting proposals.

Proposal Errors Respondents are liable for all errors or omissions contained in their proposals. Respondents will not be allowed to alter proposal documents once submitted to the City.

Incorrect Proposal Information If the City determines that a Respondent has provided, for consideration in the evaluation process or contract negotiations, incorrect information which the vendor knew or reasonably should have known was materially incorrect, that proposal will be determined non-responsive, and the proposal will be rejected at the City’s sole discretion.

Right to Refuse Personnel The City reserves the right to refuse, at its sole discretion, any subcontractors or any personnel provided by the vendor as the prime contractor or its subcontractors. The prime vendor will remain fully responsible for all subcontracted services, including performance, security, accessibility compliance, and support. The City reserves the right to interview and approve Respondent’s key staff. Respondent’s staff may be subject to the City’s background and drug testing processes at any time.

Proposal of Additional Services If a Respondent indicates an offer of services in addition to those required by and described in this RFP, these additional services may be added to the contract before contract signing at the sole discretion of the City.

Licensure Before a contract pursuant to this RFP is signed, the Respondent must hold all necessary, applicable business and professional licenses, including, but not limited to, a City of Walnut Creek Business License. The City may require any or all Respondents to submit evidence of proper licensure.

Conflict of Interest and Proposal Restrictions By submitting a response to the RFP, the Respondent certifies that no amount will be paid directly or indirectly to an employee or official of the City as wages, compensation, gifts, or other compensation in exchange for acting as an officer, agent, employee, subcontractor, or Respondent to the vendor in connection with the procurement under this RFP.

Notwithstanding this restriction, nothing in this RFP will be construed to prohibit another governmental entity from making a proposal, being considered for award, or being awarded a contract under this RFP. Any individual, company, or other entity involved in assisting the City in the development, formulation, or drafting of this RFP or its scope of services will be considered to have been given information that would afford an unfair advantage over other vendors, and said individual, company, or other entity may not submit a proposal in response to this RFP.

Contract Negotiations After a review of the proposals and completion of the reference checks, interviews, and demonstration, the City intends to enter into contract negotiations with one or more selected Respondents. These negotiations could include all aspects of services and fees. If a contract is not finalized in a reasonable period of time, the City may open negotiations with the next ranked Respondent or reject all proposals and reissue the RFP.

Right of Rejection The City reserves the right, at its sole discretion, to reject any and all proposals or to cancel this RFP in its entirety. Any proposal received which does not meet the requirements of this RFP may be considered to be nonresponsive, and the proposal may be rejected. Vendors must comply with all of the terms of this RFP and all applicable State laws and regulations. Respondents may not restrict the rights of the City or otherwise qualify their proposals. If a Respondent does so, the City may determine the proposal to be a nonresponsive counteroffer, and the proposal may be rejected. The City reserves the right, at its sole discretion, to waive minor irregularities and variances in technical proposals provided such action is in the best interest of the City. Where the City waives minor variances or irregularities in proposals, such waiver does not modify the RFP requirements or excuse the vendor from full compliance with the RFP. Notwithstanding any minor variance, the City may hold any vendor to strict compliance with the RFP.

Disclosure of Proposal Contents All documentation and/or materials submitted with a proposal shall remain the property of the City, treated as a public record, and will not be deemed confidential or proprietary. In the event that a proposer desires to claim portions of its proposal as exempt from disclosure as proprietary material or trade secret, it is incumbent upon the proposer to clearly identify those portions as proprietary or trade secret by marking the top of each sheet of the submittal with the following legend:

“CONFIDENTIAL INFORMATION”

Please note that although the California Public Records Act recognizes certain confidential proprietary/trade secret information may be protected from disclosure, the City may not be in a position to establish that the information that a proposer submits is a trade secret or proprietary. If a

request is made for information marked trade secret or proprietary, and a requester takes legal action seeking release of the materials it believes does not constitute proprietary or trade secret information, by submitting a proposal in response to this RFP, a proposer agrees to indemnify, defend and hold harmless the City, its officials, representatives, agents, and employees, from any judgment, fines, penalties, and award of attorneys' fees awarded against the City in favor of the party requesting the information, and any and all costs connected with that defense. This obligation to indemnify survives the conclusion of the RFP or City's award of a contract if any.

Severability If any provision of this RFP is declared by a court to be illegal or in conflict with any law, the validity of the remaining terms and provisions will not be affected; and, the rights and obligations of the City and Respondents will be construed and enforced as if the RFP did not contain the particular provision held to be invalid.

RFP and Proposal Incorporated into Final Contract This RFP and the successful proposal will be incorporated into the final contract.

Proposal Amendment The City will not accept any amendments, revisions, or alterations to proposals once submitted to the City unless such is formally requested, in writing, by the City.

Respondent Participation The City reserves the right to share with any Respondent of its choosing this RFP and proposal responses in order to secure a second option. The City may also invite said Respondent to participate in the Proposal Evaluation process.

Warranty The selected Respondent will warrant that the proposed solution will conform in all material respects to the requirements and specifications as stated in this RFP and as demonstrated during the evaluation process. In addition, the requirements as stated in this RFP will become part of the subsequent agreements.

Rights of the City The City reserves the right to:

- Make the selection based on its sole discretion
- Reject any and all proposals
- Issue subsequent Requests for Qualification
- Postpone opening proposals if necessary for any reason
- Remedy errors in the Request for Qualification process
- Approve or disapprove the use of particular subcontractors
- Negotiate with any, all, or none of the Respondents, at City's sole discretion and to its best interests
- Accept other than the lowest offer
- Waive informalities and irregularities in the proposals
- Enter into an agreement with another respondent in the event the originally selected Respondent defaults or fails to execute an agreement with the City
- An agreement will not be binding or valid with the City unless and until it is approved by the City Council and/or executed by authorized representatives of the City and of the vendor.

8. ADDITIONAL CONDITIONS

This RFP and any review/interview process do not commit or require the City to award a contract, to pay any costs incurred in the preparation of a proposal, provision of documents or information, or the preparation of any interviews, presentations, or demonstrations requested by the City as a result of its review of the proposal submittals and during the selection process, or to procure or contract for services. All costs for preparing or responding to the proposal in response to this RFP are solely the

responsibility of the proposer. The City reserves the right to accept or reject any or all proposals received as a result of this request, to negotiate with any qualified Respondent at any time, or to modify or cancel in part or in its entirety the RFP if it is in the best interest of the City to do so. Furthermore, a contract award may not be made based solely on price.

The City reserves the right to accept or reject any and all submitted Proposals, to waive minor irregularities, to request additional information from the responsive Respondent at any stage of the evaluation, to not conduct oral interviews or presentations, and to choose the Respondent which in its opinion best serves its interest. Submissions from Respondents not chosen to perform the work will not be returned.

The City and the final selected firm may agree to add additional work to the scope of services by mutual agreement at a later date. The City may elect to stop work at any time in the contract and will pay for work completed to that point on a time and material basis. The City reserves the right to reject any proposals based upon the proposer's prior history with the City or with any other party, which documents, without limitation, unsatisfactory performance, adversarial or contentious demeanor, significant failure(s) to meet milestones or other contractual failures. This RFP and the interview process shall in no way be deemed to create a binding contract or agreement of any kind between the City and any proposer.

9. ATTACHMENTS

Attachments to this RFP are hereby incorporated by this reference as if fully set forth herein.

- A. [Functional and Technical Requirements](#)
- B. [Consultant Services Agreement with Insurance and Indemnification Requirements](#)